HR CORPORATE PROCEDURES
FITNESS FOR DUTY

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Responsible Officer: **Human Resources Manager**
Authorised: **Chief Executive Officer**

1. Purpose and Introduction

This procedure is designed to ensure that everyone working or present at a City of Armadale workplace is fit and capable of undertaking the tasks required of them with minimal risk. Persons who are not fit for duty may present a safety hazard to themselves and others.

This procedure applies to everyone working at, or attending a City of Armadale workplace. All persons shall comply with this procedure as a condition of their engagement. Restriction of duties where City of Armadale considers a person's fitness would impose an unacceptable risk may result from:

- work related injury or illness;
- non work-related injury or illness
- fatigue;
- physical or mental deterioration or disability;
- influence of alcohol or prescribed/non prescribed drugs; and
- other impediments to perform duties

2. Overview of Fitness for Duty Procedure

The following general guidelines are provided to assist all parties to resolve concerns about an individual's fitness for duty in a cooperative and constructive manner.

Elements of the Fitness for Duty Procedure include

- Identification
- Consultation
- Medical Assessment
- Implementing Outcomes

3. Identification

Supervisors or Managers, during the course of normal employment, may become aware of, or suspect that an Employee has a medical issue that is impacting on ability to perform in their role. These issues can include

- work related injury or illness;

- non work-related injury or illness
- fatigue;
- physical or mental deterioration or disability;
- influence of alcohol or prescribed/non prescribed drugs; and
- other impediments to perform duties

It is their responsibility to invoke this procedure.

Duty of the Employee to Obtain Assistance
Employees are required to seek assistance if they become aware of, or suspect that they have, a condition that could impair their fitness for duty.

4. Consultation

Once it has become evident or suspected that an individual's fitness for duty could be impaired, the individual concerned will be given the opportunity to discuss the matter in confidence with their manager or the Workplace Health & Safety Coordinator (WHS Coordinator). Individuals will have the right, if they wish, to be accompanied at any discussion by a work colleague, family member or health and safety representative.

5. Medical Assessment

The purpose of medical assessments is to determine if there is any medical reason the employee cannot perform the job or task under the working conditions.

Medical Assessments are also required when the employer wishes to be sure an employee can safely perform a specific job or task. Fit for duty assessments are most often done to determine medical fitness after a period of illness or injury, prior to employment or as a condition of a job transfer.

The employee will visit a medical professional who will determine if the person is able to perform a particular job. They may consider physical or mental capabilities, sensory acuity, level of skill, etc. The medical professional will typically only report one of three conditions back to the employer:

1. fit,
2. unfit, or
3. fit subject to work restrictions, modifications

There may be legitimate medical or other reasons for impairment of an individual's fitness for duty. In such circumstances, employees will be required to have their doctor discuss their circumstances with the WHS Coordinator before they are permitted to return to work.

Provision of Suitable Duties

Suitable duties are to be provided by the City of Armadale where it is reasonably practical to do so, on a temporary basis only. The provision of suitable duties to employees with non-work related injuries is undertaken with the expectation the employee will return to full and normal duties.

Suitable duties will be for a limited period, monitored closely. On occasions where it is not reasonably practical to provide suitable duties for an injured employee as determined by the

WHS Coordinator and the injured employee's supervisor, the injured employee is to be advised immediately. Where it is medically identified that the employee will be unable to resume their full pre-injury duties, consultation regarding the City of Armadale's ability to provide alternate duties will be evaluated on a case by case basis and will include the following considerations: -

i) The range of activities the injured employee is capable of performing;
ii) The abilities and expertise of the injured employee;
iii) The availability of positions matching i) and ii).

No Return to Work – Certain Medical Conditions
If an individual has been requested to seek medical assessment, or where a manager, supervisor or other person in the work place has reasonable grounds to believe that the Fitness for Duty of an individual may be affected by physical or mental illness, injury, stress, fatigue or any other condition, the individual will not be permitted to return to work until they have been appropriately assessed and cleared for return to work under procedures acceptable by a medical professional.

Positive Drug or Alcohol Reading
If an employee is deemed unfit for duty as a result of a positive alcohol or drug test, they will not be permitted to return to work until such time as they have obtained a Medical Certificate which demonstrates that they are fit for duty.

Limitation of City of Armadale Involvement in Issues of Legitimate Concern
An individual's personal problems or behaviour outside work are private matters. The City of Armadale will only become involved when these have the potential to interfere with job performance and / or safety in the workplace, or where an employee requests assistance in dealing with an issue or where an individual's behaviours in the workplace may warrant intervention.

Serious Misconduct
A serious misconduct in relation Fitness for Duty can occur where an individual:

- breaches the conditions of an existing management plan
- is involved in behaviour deemed as serious misconduct in the workplace
- places themselves or others in the workplace at serious risk of injury

In these circumstances, the individual will be subjected to discipline procedures which may result in the termination of employment of the individual, or a withdrawal of site access.

Discipline Procedures
A breach of this Fitness for Duty Procedure, or a Fitness for Duty Case Management Plan which has been put in place for an individual, may have disciplinary consequences. Discipline will be in accordance with City of Armadale HR policies, standards and procedures.

6. Implementing The Medical Advice

Options for managing the health related issue are listed below and will depend on the outcome of the assessment.

Personal Leave

The assessment may recommend that the employee be absent from work on sick leave for a specified period. This may be to allow the employee time to recover or meet certain health targets. A further medical assessment may be required to determine how the return to work is to be managed and when it can safely occur.

Return to normal duties
A further medical assessment may be required to determine how the return to work is to be managed and when it can safely occur. The assessment may recommend that the employee return to their normal position work, but it may require reasonable workplace adjustment.

Workplace Adjustments
The City of Armadale will provide the nominated medical assessor factual information on the physical environment of the workplace, the operational requirements of the work unit and any other unique characteristics of the workplace that the medical assessor should be aware of in making any recommendations on workplace adjustments.

Alternative Duties
Another type of workplace adjustment is alternative duties whether on a temporary or permanent basis.

Where the medical advice states that an employee could fulfil alternative duties.

A transfer may be considered when:

- it is not possible to offer suitable employment within the same department
- the employing department cannot retrain the employee
- it is not possible to redesign the position in order to provide them with meaningful work at their pre-injury/illness level of employment.

Medical Retirement
The nominated medical provider may assess that the employee has long-term health issues affecting their ability to safely continue in their position or fulfil the inherent requirements of their position, or the employee's incapacity appears likely to be permanent.
In this case the CEO or delegate is to decide whether an employee is to be medically retired. This decision should happen on receipt of the advice and following the expiry of any review period. Before deciding, the CEO or delegate must:

- be satisfied that the elements set out in the relevant legislation and policy have been met
- be clear on the medical basis on which the proposed medical retirement will be based
- be satisfied that the proposed medical retirement is the last resort and the employee is genuinely unable to carry out the full inherent requirements and demands of the position
- be satisfied that reasonable attempts have been unsuccessful in identifying duties commensurate with identified medical restrictions, and there are no suitable alternative positions in which the employee can be placed.

7. Guidelines for Supervisors

Identification

The supervisor who receives reliable information that an employee may be unfit for duty, or through personal observation believes an employee to be unfit for duty, will validate and document the information or observations as soon as is practicable.

Actions that may trigger the need to evaluate an employee's fitness for duty include, but are not limited to, problems with dexterity, coordination, concentration, memory, alertness, vision, speech, inappropriate interactions with co-workers or supervisors, inappropriate reactions to criticism, or suicidal or threatening statements.

The WHS Coordinator is to be contacted immediately should the supervisor observe or should the employee inform the supervisor of any of the following:

- work related injury or illness;
- non work-related injury or illness
- fatigue;
- physical or mental deterioration or disability;
- influence of alcohol or prescribed/non prescribed drugs; and
- other impediments to perform duties

Consultation

The supervisor will present the information or observations to the employee at the earliest possible time in order to validate them; and will allow the employee to explain his or her actions, or to correct any mistakes of fact contained in the description of those actions. The supervisor is then to contact the WHS Coordinator who will determine whether the employee should leave the workplace immediately for safety reasons.

In situations where there is a basis to think that an offence may have been committed and/or the employee is making threats to harm himself or herself or others, or is acting in a manner that is immediately dangerous to himself or herself or others, the supervisor shall contact the WHS Coordinator and/or Human Resources Manager regarding the fitness for duty procedure after the immediate safety issue has been addressed.

For situations arising outside the 8:00 a.m. to 5:00 p.m. workday, the supervisor/manager will make a determination of whether the employee should leave the workplace immediately for safety reasons. The WHS Coordinator should then be contacted at the beginning of the next business day.

Based on the descriptions provided by the supervisor, WHS Coordinator will determine whether a fitness for duty evaluation is required and, if so, the type of evaluation needed and the type of health service provider to make the evaluation. Human Resource (HR) may also be consulted to aid in determining the type of leave to be used pending a complete assessment of the situation.

Medical Assessment

WHS Coordinator will provide a form for the designated health service provider for completion to certify whether the employee is fit to return to work. The health service provider form will include a behavioural description of the circumstances leading to the request for evaluation, and a list of the employee's relevant duties (Position Job Dictionary). The WHS Coordinator may facilitate communication with the health service provider as necessary on consent by the employee.

The employee will generally be responsible for the cost of medical expenses. The City will cover the cost of the fitness for duty evaluation and other medical investigations.

Based on information provided by the health service provider, the WHS Coordinator will advise the supervisor whether the employee should return to work and, if so, the conditions of return, including whether the employee must attend a re-entry conference with the supervisor and WHS Coordinator, and whether additional follow-up meetings are necessary. The final decision on whether a provider's certification will be accepted lies with the employee's departmental management. A second independent health service provider certification may be requested in some cases. The employer will be responsible for the cost of the second independent provider's certification.

The employee must comply with all aspects of the fitness for duty and evaluation procedures, including furnishing necessary consent and release forms to the health service provider. Noncompliance may be grounds for disciplinary action up to and including termination. Information will be requested from the health service provider regarding work restrictions that may be required upon the employee's return to work.

Application of this policy is not intended as a substitute for other City of Armadale policies or procedures related to performance; nor are it intended as a substitute for discipline. Situations involving violations of City of Armadale policies or practices may result in disciplinary action being taken.

8. Guidelines For Workplace Health & Safety Coordinator

Identification

The WHS Coordinator will discuss the issue with the employee and the supervisor. They will determine if a Medical Assessment is required.

If it is determined that a medical assessment is required the employee will not be permitted to resume work until such time as they have attended a medical assessment and are deemed fit for duty.

MEDICAL ASSESSMENT

General basis for referrals
The City of Armadale may need to seek medical advice on how to safely manage a health related issue that is affecting an employee's ability to perform the inherent requirements and demands of the position for which they were engaged. Any advice sought must be in accordance with:

- the overriding legislative responsibility under the Occupational Health and Safety Act 1984 for the City of Armadale to manage risk and ensure the health, safety and welfare at work of employees; and
- a Chief Executive Officer's responsibilities and functions for ensuring the effective, efficient and economical management of their agency.

The type of medical advice requested may relate to an employee's:

- ability to safely carry out the inherent requirements and demands of the position for which they were employed, in the short or long term
- medical restrictions that may apply in the workplace
- temporary or permanent adjustments that may need to be made in order to facilitate a safe return to work or to remain safely on duty
- safe return to work

It may also become necessary to seek medical advice relating to:

- whether a medical condition has contributed to a conduct or performance issue
- whether a second opinion is required, for example, in respect of advice from an employee's medical practitioner which seems inconsistent with other available evidence
- any impact the health of the employee may have on the health and safety of other employees in the workplace, or on non-employees, for example visitors or clients .

Employee initiated Medical Retirement
Where an employee who is suffering a non-work related injury or health condition requests an independent medical assessment with the view of accessing medical retirement benefits the City of Armadale may rely on the employee's treating doctor's advice supporting medical retirement.

Employee's treating doctor
In the first instance the City of Armadale must rely on the available medical advice from the employee's treating doctor in relation to the doctor's assessment of their capacity for work. Additional advice may be sought by the City of Armadale where it is unclear or there are concerns about the practicality of implementing the doctor's advice. The City of Armadale should discuss this with the employee first, and then, request additional information or clarification from the employee's treating doctor.

The City of Armadale will obtain a signed general consent from the employee to enable appropriate advice to be sought from the employee's medical practitioners (the *Authority to Release Medical Information* Form).

All requests for employees to attend their treating doctor must be consistent with the *"Referral of Employees"* section in this document. The City of Armadale is to provide the treating doctor with a contact name and phone number of an appropriate person in the City of Armadale who will be available to be contacted in case clarification is required of the questions being asked.

If the information is not made available from the employee's treating doctor or is inconsistent with other available evidence, or inadequate, or would result in an unreasonable delay, then the City of Armadale may seek independent medical advice from the nominated medical assessor. (It should be noted that appointments with specialists may take time, depending on the availability of the specialist).

Direction to cease duty - allocation of leave pending medical assessment
For staff employed at the City of Armadale, if a direction has been given to an employee to cease duty pending a medical assessment, the employee will be directed to take personal leave. Following the medical assessment, should the employee be deemed unfit and the nominated medical assessor advises that sick leave is appropriate, then sick leave is to apply from when the employee was directed to cease duty.

Direction to attend a medical assessment
Whether a referral for a medical assessment is under a City of Armadale general OH&S obligations or other specific provision, employees are required to comply with reasonable direction to attend **and participate** in a medical assessment. Employees should remain aware that if they fail to comply with such a reasonable direction they may be subject to disciplinary procedures**.**

Reasonable steps should be taken to check that an employee is capable of attending a medical assessment.

Nominated Medical Assessor
The City of Armadale may elect to use the nominated medical assessor but are not required to do so and may use another appropriately qualified medical provider to undertake independent medical assessments of employees.

Referral of Employees
The City of Armadale will provide objective, accurate and relevant information to the employee's treating doctor or nominated medical assessor. The minimum standards listed below apply to all referrals.

Referrals to a nominated medical assessor
A nominated medical assessor may require referral information in a standard format, in addition to the written report.

Referrals to be made by a duly authorised person
The CEO or a specifically authorised delegate, such as, the WHS Coordinator or Human Resources Manager, must authorise all referrals and sign the written report.

WRITTEN REPORT
A written report that contains all of the following information must always accompany a referral:

1. **Basis for referral** -

2. **Inherent requirements** and **demands of the position** - information which documents the inherent requirements and demands of a position and the work performed including both items below:

    - Position Job Dictionary: a description of the common tasks performed, any tools and technologies commonly used and the work environment (e.g. outdoor work)
    - Position Description: the knowledge, skills, abilities and other characteristics required which are commonly contained in a position description.

3. **Outline the health-related issue(s) that is/are affecting the ability to perform the inherent requirement/s and demands of the position** - and refrain from making any assumptions about a medical condition in the absence of a diagnosis from a qualified medical practitioner.

4. **How the injury or health condition is affecting the ability to perform the inherent requirement/s and demands of the position** - Reports should be based on factual information on how work performance relating to the inherent requirement/s of the position is being affected by the injury or health related condition provided by the employee's immediate supervisor.

5. **Specific question(s)** – state the workplace specific question(s) that require an answer from the medical provider. Unless clinical advice is particularly being sought on an employee's ability to safely continue in a particular job, it is not sufficient to simply request an assessment of an employee's "fitness to continue" or assume the question(s) will be inferred from the general background. If clinical advice is being sought on an employee's ability to continue in a particular job or to undertake alternative employment this must be made clear in the referral.

6. **Previous referrals** - detail any previous referrals and the outcome of any action to implement the previous advice. This must include copies of employee's treating doctor reports where provided and where the employee has consented to their inclusion. If a treating doctor report has not been made available this should be noted in the report for the assessor's information.

7. **Workers compensation** – include a statement that this referral**,** in so far as the workplace understands, is only related to a non-work related health issue and should it be identified that the health issue is related to an employee's compensable health matter then the referring workplace should be contacted immediately.

8. **Summary of documents** – a summary of the documents in checklist format.

Referrals must be based on health related issues
It is not the role of the nominated medical assessor to undertake medical assessments arising from non health related matters that must be managed by the workplace.

There may be occasions where a workplace seeks medical advice to confirm it is safe for an employee to be involved in a complaints resolution, performance management or disciplinary process. In providing contextual information for a referral, it is only necessary to provide relevant details of the discipline, investigation or performance appraisal process, unless those details are prevented from being disclosed due to confidentiality requirements. Any information provided must not pre-empt the outcome of the process and allegations or complaints should not be brought to the employee's attention for the first time as a result of the referral.

Security and confidentiality of documentation
City of Armadale must ensure that all referral records are secure against loss, unauthorised access, modification or other misuse.

Employee to be consulted and provided with copies of documentation
The employee must be made aware of the reason for the referral and where possible, in person (particularly if their ability to continue in a particular job is raised).

City of Armadale will provide the employee with copies of all information sent to the nominated medical assessor.

Employees may be accompanied by a support person **at the medical assessment**. This may be a union representative.

When copies of referral documents are sent to the employee they must be accompanied by a form requiring the employee to sign and return to the agency acknowledging receipt of the documentation**.** If this acknowledgement cannot be made or is not received, the agency should make reasonable attempts to contact the employee to confirm receipt. Any lack of formal acknowledgement is not an indication that the employee has not received the documentation and this should not delay the assessment process. However, the City of Armadale should notify the nominated medical assessor of the lack of acknowledgement.

Employee may provide information
Employees have the right to send a written response to the nominated medical assessor about the information in the agency's referral. Any such response must be relevant and confined to the same health-related issues contained in the referral.

Employees should ensure the nominated medical assessor is provided with any additional **medical information** not contained within the referral **at the earliest possible opportunity and no later than the day of the appointment**.

Employees are strongly encouraged to provide the additional information to the City of Armadale to ensure that any future decisions are based on all relevant information. To this end employees may need to consider the balance between their desire for confidentiality and the need for the agency to have sufficient information to ensure that the agency can provide a safe place of work for the employee, to enable appropriate support to be offered and to address any specific workplace issues affecting the employee.

Employee consent form
The City of Armadale will make available to the employee at the time of referral the *Authority to Release Medical Information* Form. The employee may sign the consent form at the time of referral or sign at a later date after discussing with their treating doctor or specialist as to what information should be made available to the employer to provide the best outcome for the rehabilitation of the employee.

Supplementary information
The City of Armadale may provide the nominated medical assessor with relevant supplementary information at any time following the initial referral.

Timeframes
The time taken to conduct a medical assessment and implement the advice will vary due to a range of factors including any of the following:

- whether the employee provides information or the agency provides supplementary information
- the time taken to get an appointment with a practitioner
- the number and complexity of the health issues
- the need to refer matters to specialists and the promptness in which reports from other practitioners are provided
- the emergence of additional issues as the assessment or implementation of the advice proceeds
- whether the employee has sought a review of the medical assessment or the time taken for the agency to be notified that an employee has not sought a review.

Employee Assistance Programs
An employee may feel anxious about the process and may require additional support. Managers should encourage employees to use the Employee Assistance Program (EAP) made available through their agency.

Separately from the EAP there are many community and general welfare support services that can be accessed by individuals.

THE MEDICAL ASSESSMENT
Following the medical examination, the nominated medical assessor will provide a report to the agency and the employee which sets out the basis for the advice.

The nominated medical assessor’s advice may include any of the examples listed below depending on the reason for referral, the basis of the referral and the agency’s specific question(s):

- fit to return to their normal position
- fit to return to their normal position with reasonable adjustments, restrictions and/or a rehabilitation program
- temporarily unfit but is likely to become fit to return to their normal duties within an approximate time frame or date.
- temporarily unfit but is likely to become fit to return to normal duties with reasonable adjustments or alternative duties within an approximate time frame or date.
- permanently unable to carry out the inherent requirements and demands of their position
- permanently unfit for any duties.

The nominated medical assessor may discuss the advice with the City of Armadale but it will be limited to health matters that relate to the employee's ability to safely undertake the inherent requirements and demands of the position and any rehabilitation or adjustment issues. The nominated medical assessor must not disclose any other health matters without the employee's written consent.

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